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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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General Comment

I am an everyday American who works as a visual artist, designer, and author. I have worked hard for years to develop the skills and knowledge to build my business, and have been lucky enough to make a decent living and support myself and contribute to my community.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses and independent arts professionals like me with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make their practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". It is not "fair use" if an individual steals and reproduces copyrighted work, thus it is not "fair use" for a machine or a corporation to do so.

They believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation. When in reality, allowing businesses to use AI to steal hard-working American's creative work is what will stifle innovation.

The purpose of American copyright law is to protect the incentive to create and innovate.

If the American people do not own our creations, and everything we put online is to be stolen by Big Tech giants, what motivation is there to create? If everyday citizens create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Protecting American creators is what protects American innovation. Do not create any copyright exemptions that enable Tech companies to steal from creators and exploit the innovations of everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan must focus on ensuring a fair marketplace with competition, by not giving away creator content to Big Tech companies:

First, the government should ensure that creators and everyday Americans give effective consent, empowering our rights as creators to decide when and where our work is used by AI systems.

Secondly, the AI Action Plan must encourage a robust licensing marketplace to preserve the incentive to create for small businesses and individuals. Our work has immense economic value, so the value generated by that work belongs to the original creators, not just Big Tech.

Finally, the AI Action Plan must demand transparency from Big Tech companies, requiring them to disclose the material used in their

training datasets, and label content that is AI generated.

I am not anti-technology, I am consistently impressed by the capabilities and innovations that we are achieving with tech. But we cannot sacrifice the hard work of hundreds of thousands of Americans and give it away to corporations by rewriting copyright law.

Thank you for your time and attention on this matter.